

Saabir Khan v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 26 July 2024 · 2024:AHC-LKO:51284-DB · WRIT - C No. 6464 of 2024 · **Disposed; 6.14 instalment application to be decided; half dues restore supply**

HEADNOTE

Writ for restoration and one-time settlement of a rural domestic bill of Rs. 53,043 disposed by directing the consumer to apply within one week under paragraph 6.14 of the Electricity Supply Code for instalments of the pending arrears, the authority to pass an appropriate order within four weeks. The licensee stated that deposit of half the dues within that week would be followed by forthwith restoration. The proposed unauthorized-use assessment was left for later notice and hearing.

FACTUAL SUMMARY

Saabir Khan has a rural domestic connection of 1 kW at Tamrasepur, Lambhua, Sultanpur. He says he paid bills regularly. On 24 July 2024 the licensee's staff inspected the house, drew a checking report he calls false and unsigned by every team member, and cut supply without prior notice or a written order. The licensee says Rs. 53,043 of bills is unpaid, the check showed unauthorized use for which a provisional assessment is still to come, and disconnection was only for the arrears.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Instalments of pending electricity arrears

HOLDING

The writ is disposed by directing the consumer to apply, within one week and in the prescribed form, to opposite party no. 3 under paragraph 6.14 of the Electricity Supply Code for fixation of instalments of the pending arrears, and by directing that authority to pass an appropriate order within four weeks. The licensee stated on instructions that if half the pending dues are deposited within that week, supply shall be restored forthwith. ¶ 1-2

PRINCIPLE TAGS

installment-payment-clause-6.14 Pending billed arrears for which supply was disconnected are routed to paragraph 6.14. The Court did not fix the instalments; it directed a formal application within one week and an appropriate order by the authority within four weeks, and recorded the licensee's statement that half deposit in that week would bring forthwith restoration. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 24 JULY 2024 CHECKING REPORT WAS FALSE AND WHETHER DISCONNECTION WAS WITHOUT NOTICE OR A WRITTEN ORDER

The Court recorded the licensee's stand that supply was cut for arrears. It did not quash the report or the disconnection. ¶ 1-2

NOT DECIDED — ENTITLEMENT TO ONE-TIME SETTLEMENT OF THE BILL OF RS. 53,043

The mandamus for one-time settlement was not granted. The consumer was directed to seek instalments under paragraph 6.14. ¶ 1-2

NOT DECIDED — PROVISIONAL ASSESSMENT FOR ALLEGED UNAUTHORIZED USE, AND THE NUMBER AND SCHEDULE OF INSTALMENTS

The licensee said a provisional assessment would follow with prior notice and hearing. Instalment terms were left to the appropriate order under paragraph 6.14. ¶ 1-2

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.